



DECISION

Complaint No. : POS/2974/2023/41/KHS

Name and address of the complainant : Mr. Muhammad Ali, Flat No.R-3, Naval Flats, KNCRE, Lyari Aagra Taj Colony, Karachi.

Name of the Agency Complained against : Malir Development Authority (MDA)

Name & Designation of Investigating Officer : Syed Maqsood Haider, Director, Regional Office (South), Karachi

Vetted by : Ms. Rehana G. Ali Memon, Advisor-H.

Subject : DELAY IN ALLOTMENT OF ALTERNATE PLOT IN LIEU OF PLOT NO.R-653, SECTOR 53, TAISER TOWN, AFFECTED DUE TO LYARI EXPRESSWAY RESETTELEMENT PROJECT (LERP).

THE COMPLAINT

Mr. Muhammad Ali filed the complaint on 13.04.2023 on behalf of his wife, Ms. Uzma Ali, who is the lawful allottee of a 120 square yard plot bearing No. R-653, Sector 53, Taiser Town, allotted by the Malir Development Authority (MDA) on 03.06.2010. Subsequently, the said sector was taken over under the Lyari Expressway Resettlement Project (LERP), rendering the original plot unavailable for possession.

2. Despite repeated representations submitted to the MDA on 25.01.2022, 29.03.2022, and 30.11.2022, no alternate plot was allotted to the complainant. Due to the continued inaction of the Agency, the complainant approached the Provincial Ombudsman Sindh for redressal of his grievance.

PROCEEDINGS

3. After admission of the complaint by condoning delay under Section 10 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), and receipt of the mandatory Affidavit on Form "A" along with supporting documents, comments were sought from the Agency.

4. In response, the Malir Development Authority submitted reports dated 02.06.2023, 27.03.2023, and 29.06.2024. The Agency admitted that the complainant's allotted plot could not be handed over as the land had been absorbed into the Lyari Expressway Resettlement Project (LERP). It was further stated that a Scrutiny Committee was constituted by the Chief Secretary, Government of Sindh, on 10.06.2014 under the chairmanship of the Senior Member, Board of Revenue, to examine such cases.

5. The Agency reported that it has been persistently requesting the Senior Member, Board of Revenue, to convene meetings of the committee for resolution of claims of affected allottees. Subsequent reports dated 17.05.2024, 24.06.2024, and 13.08.2024 reiterated that although the complainant's original allotment remains valid, an alternate plot cannot be allotted until additional land is provided by the Government of Sindh to overcome the existing shortage.

6. A hearing was held on 24.07.2025, which was attended by Mr. Abdul Qadir, Deputy Director (MDA), Mr. Muhammad Arif, Executive Engineer, Taiser Town (MDA), and the complainant. During the hearing, the MDA officials submitted a joint written statement offering the complainant the following two options:

- **Option 1:** To take physical possession of the original plot in Taiser Town upon payment of the outstanding amount of Rs. 40,000/-.
- **Option 2:** To wait for allotment of an alternate plot once additional land is provided to the MDA by the Government of Sindh.

7. The complainant declined Option 1 and, through a written application dated 31.07.2025, conveyed his formal consent to receive an alternate plot in lieu of the original allotment. He further requested early finalization of his case.

FINDINGS

8. I have gone through the case file and found as under:

- i. The investigation establishes that the allottee has suffered undue hardship for the past fifteen years due to the acquisition of her allotted plot for the Lyari Expressway Resettlement Project (LERP). The prolonged delay is attributable to lack of inter-departmental coordination and failure to convene meetings of the Scrutiny Committee since its constitution in 2014. There appears to be little likelihood of convening a meeting of the committee, as it has not held any meeting for the past 12 years.
- ii. Since the Malir Development Authority has admitted the genuineness of the claim and the complainant has formally opted for an alternate plot, the allottee is justly entitled to allotment of a replacement plot of the same size and category without any further delay.

DECISION

9. In exercise of powers conferred upon me under Section 11 of the Establishment of the Office of Ombudsman for the Province of Sindh Act, 1991 (as amended up to date), I hereby direct the Director General, Malir Development Authority to allot an alternate plot of the same size and category in accordance with law and free from any kind of occupation to the complainant's wife i.e. original allottee **OR** pay the amount to her as per current market value in lieu of the said plot alongwith mark up.

Given under my hand and seal of the office.



Sd /-
Muhammad Sohail Rajput
Sitara-e-Imtiaz. PAS
Ombudsman, Sindh

Karachi, dated 26th January, 2026